

Intermodal Motor Carriers Conference, et al.

v.

Ocean Carrier Equipment Management Association, Inc., et al.

FMC Docket No. 20-14

**Evergreen Joint Line Service Agreement's
Statement of Undisputed Material Facts**

Public Version – Confidential Materials Excluded

INTERMODAL MOTOR CARRIERS CONFERENCE, AMERICAN TRUCKING ASSOCIATIONS, INC.	)	
	)	
Complainant,	)	
	)	
v.	)	
	)	FMC Docket No. 20-14
OCEAN CARRIER EQUIPMENT MANAGEMENT ASSOCIATION, INC.; CONSOLIDATED CHASSIS MANAGEMENT, LLC; CMA CGM S.A.; COSCO SHIPPING LINES CO. LTD.; EVERGREEN LINE JOINT SERVICE AGREEMENT, FMC NO. 011982; HAPAG-LLOYD AG; HMM CO. LTD.; MAERSK A/S; MSC MEDITERRANEAN SHIPPING COMPANY S.A.; OCEAN NETWORK EXPRESS PTE. LTD.; WAN HAI LINES LTD.; YANG MING MARINE TRANSPORT CORP.; AND ZIM INTEGRATED SHIPPING SERVICES,	)	
	)	
Respondents.	)	
	)	

1. Respondent Evergreen Line Joint Service Agreement, FMC No. 011982 (“Evergreen”) is a joint service agreement between Evergreen Marine Corp. (Taiwan) Ltd., Italia Marittima S.P.A., Evergreen Marine (Singapore) Pte Ltd, Evergreen Marine (UK) Ltd., and Evergreen Marine (Hong Kong) Ltd., FMC Agreement No. 011982 and located at No. 163, Sec. 1, Hsin-Nan Road, Luchu Hsian, Taoyuan Hsien, 338, Taiwan. (STIP #54).¹

1 “STIP #_” refers to the Stipulated Facts agreed upon by the parties pursuant to 46 C.F.R. §502.207. A Confidential Restricted Version was transmitted to Judge Wirth, and a redacted Public Version was filed with the FMC, on February 28, 2022.

2. Evergreen has conducted business in the United States through Evergreen Shipping Agency (America) Corporation, located at One Evertrust Plaza, Jersey City, NJ 07302. STIP #55.

3. Evergreen publishes tariffs for the transportation of cargo containers to and from ports and/or points in the United States. STIP #62. The provisions of these tariffs are summarized in STIP #63-67.

4. [REDACTED]

[REDACTED]

[REDACTED]

5. Evergreen provides chassis to its customers for use by the customers' designated motor carriers moving the cargo of Evergreen's customers on an MH basis. (STIP #63 and 64)

6. If an Evergreen customer chooses to have its motor carrier use a chassis other than one provided by Evergreen for MH shipments, the customer and its motor carrier can use their own chassis or a chassis provided by an IEP selected by the motor carrier or the customer. (STIP #63-65; [REDACTED]).

7. If its customer wants Evergreen to provide the chassis for an MH movement, the customer pays Evergreen a Chassis Usage Charge. (STIP #63-65; [REDACTED])

[REDACTED].

8. If its customer pays a Chassis Usage Charge for an MH shipment, Evergreen makes the chassis available to the motor carrier free of charge for the day of delivery plus 4 business days, Saturdays, Sundays, holidays excluded. ([REDACTED])

[REDACTED]; STIP #63-#65; [REDACTED])

9. Evergreen does not charge motor carriers for the usage of chassis moving shipments on an MH basis. (Wang Dep., p. 36 ll.4-7 APP 0613)

10. The chassis provided by Evergreen to motor carriers, moving their customers' cargo on an MH basis, are interchanged pursuant to the terms of the Uniform Intermodal Interchange Agreement, Evergreen's addendum thereto and Evergreen's tariff. (STIP#63-65; [REDACTED])

11. The only charge that Evergreen will potentially invoice to a motor carrier is for *per diem*, which is a charge that is assessed if the chassis is not returned by the motor carrier within the free time period described above. (STIP #63-65; [REDACTED])

12. If the motor carrier does not return the chassis within the free time period, Evergreen assesses *per diem* at a rate of \$20 per day, commencing the day after free time expires and running until the day that the chassis is returned. ([REDACTED])

13. Evidence in the record confirms that, on those occasions when Evergreen has charged *per diem*, the motor carrier marks up and invoices the *per diem* charge to its customer. ([REDACTED])

COZEN O'CONNOR

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